

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1436

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO STATE PROCUREMENT; AMENDING SECTION 67-9224, IDAHO CODE, TO REVISE PROVISIONS REGARDING COOPERATIVE AND GROUP DISCOUNT PURCHASING; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-9224, Idaho Code, be, and the same is hereby amended to read as follows:

67-9224. COOPERATIVE AND GROUP DISCOUNT PURCHASING. (1) The Notwithstanding any provision of this chapter to the contrary, the administrator may authorize an agency to:

(a) Become a participating member of a group discount purchasing organization;

(b) Participate in, sponsor, conduct or administer a cooperative purchasing agreement for property with one (1) or more public agencies, independent of the requirements of section 67-2329, Idaho Code; or

(c) Utilize contracts of other public agencies within this state upon determining that the contract was let in a manner that constitutes competitive bidding consistent with the requirements of this chapter and is otherwise in the best interest of the state.

(2) Any contracts entered into pursuant to subsection (1) of this section may include modifications to address additional needs of the state if the administrator determines the modifications are in the best interest of the state. The administrator shall inform the vendor of the manner in which the state may request modifications prior to entering such contract.

~~(2) (3)~~ The state's participation in a cooperative purchase or group discount purchasing organization must be formalized by a written agreement.

~~(3) (4)~~ The state's entrance fee or participation fee in a group discount purchasing organization must be based on criteria applied to all other members of the organization.

~~(4) (5)~~ Any agreement entered into pursuant to subsection ~~(2) (3)~~ of this section shall be maintained on file with the division as well as with the agency entering into the agreement.

(6) The legislature finds and declares that group discount purchasing, cooperative purchasing, and shared contracts reduce administrative burden to the state by requiring fewer solicitations. The legislature further finds and declares that group discount purchasing, cooperative purchasing, and shared contracts may enable the state to procure property for reduced cost. It is the intent of the legislature to authorize such activities in a manner that allows flexibility to modify underlying contracts when the modification, in the administrator's judgment, would serve the best interest of the state.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after its
3 passage and approval.